

		Further, Defendants did not file a proposed answer with the motion and thus did not comply with Code Civ. Proc. § 473.5(b). (Code Civ. Proc. § 473.5(b) (“The party shall serve and file with the notice a copy of the answer, motion, or other pleading proposed to be filed in the action.”).) Instead, they filed the proposed answer with their Reply papers, which does not comply with Section 473.5(b). Plaintiff’s request for judicial notice of the Court’s docket and certain documents filed in this matter is denied as it is unnecessary to take judicial notice of materials previously filed in this case. Plaintiff to give notice.
6	Rinner v. Hoyt	CONTINUED TO 11/1/23
7	BMO Harris Bank N.A. v. Caduceus Physicians Medical Group	TENTATIVE RULING: For the reasons set forth below, Plaintiff BMO Harris Bank N.A.’s Applications for Right to Attach Orders and Issuance of Writs of Attachment are DENIED. No order or writ shall be issued under this article except after a hearing. At the times prescribed by subdivision (b) of Section 1005, the defendant shall be served with all of the following: (a) A copy of the summons and complaint. (b) A notice of application and hearing. (c) A copy of the application and of any affidavit in support of the application. (Code Civ. Proc., § 484.040; see Code Civ. Proc., § 1005, subd. (b) [“all moving and supporting papers shall be served and filed at least 16 court days before the hearing”].) “Attachment procedures are purely a creation of statute and it has been held that such statutes are subject to strict construction.” (<i>Commercial & Farmers Nat. Bk. v. Hetrick</i> (1976) 64 Cal.App.3d 158, 165.) Courts have an obligation to strictly construe the purely statutory remedy of pre-trial attachment. (<i>Hobbs v. Weiss</i> (1999) 73 Cal.App.4th 76, 77-78; see <i>Royals, supra</i>, 81 Cal.App.5th 328, 345 [to be entitled to obtain a writ of attachment, and to protect the

defendant’s due process rights, plaintiff must meet a set of detailed procedural and substantive requirements]; see Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2023) ¶ 9:912 [section 484.040 of the Code of Civil Procedure “requires service of the application *and any supporting papers* at least 16 court days before the hearing....”].)

On July 6, 2023, Plaintiff filed eight documents in support of its two Applications for right to attach orders: two documents entitled (1) & (2) Right to Attach Order and Order for Issuance of Writ of Attachment After Hearing” [ROA # 53, 54], (3) & (4) Notice of Application for Right to Attach Order and Order for Issuance of Writ of Attachment [ROA # 51, 52], and (5) & (6) Application for Right to Attach Order, Order for Issuance of Writ of Attachment After Hearing [ROA # 49, 50]. It also filed (7) a Declaration of Joel Spencer in Support of Plaintiff’s Applications for Right to Attach Order and Orders for Issuance of Writs of Attachment [ROA # 45], and (8) a Memorandum of Points and Authorities [ROA # 43].

However, only one submission, namely, the Memorandum of Points and Authorities in Support of Plaintiff BMO Harris Bank N.A.’s Applications for Right to Attach Orders and Issuance of Writs of Attachment, was accompanied by a proof of service. [ROA # 43] The proof of service attached to the Memorandum of Points and Authorities specifies that only that document was being served on Defendants.

On September 20, 2023, Plaintiff filed a document entitled “Declaration of Service of Applications for Right to Attach Order and Orders for Issuance of Writs of Attachment.” [ROA # 63] In that document, Plaintiff states it electronically served all eight documents on September 20, 2023.

This is untimely under sections 484.040 and 1005, subdivision (b) of the Code of Civil Procedure, which required all moving and supporting papers be filed and served at least 16 court days before the hearing.

Since the Court must strictly construe Plaintiff’s Applications, the Court denies them for failure to timely serve all papers in support of its two Applications.

Plaintiff is ordered to give notice.